

26VECV04234 26VECV04234

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-09-28

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Case Number: 26VECV04234 Hearing Date: September 28, 2026 Dept: 107

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY OF

LOS ANGELES

Meline Bogosyan Sahin,

⌚

Plaintiff,

v.

Jaguar Land Rover North America, LLC

et al.

⌚ Defendants.

Case No.: 26VECV04234

[TENTATIVE] Demurrer

without Motion to Strike

TENTATIVE:

Sustain with leave to amend.

I.

BACKGROUND

On or around May 30, 2023, Plaintiff Meline Bogosyan

Sahin ("Plaintiff") purchased a 2023 Land Rover Range Rover (the "Vehicle").

(Complaint ¶ 10.) The Vehicle was defective. (Complaint ¶ 13.)

On July 21, 2026, Plaintiff filed a complaint

against Defendants Jaguar Land Rover North America, LLC, Galpin Motors, Inc.

dba Land Rover Van Nuys, and Does 1 through 10, alleging causes of action for:

(1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of

Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section

1793.2, subdivision (a)(3); (4) violation of Civil Code section 1791.1; and (5)

negligent repair.

On August 25, 2026, Defendants Jaguar Land Rover

North America, LLC ("Jaguar") and Galpin Motors, Inc. dba Land Rover Van Nuys

("Galpin") (collectively, "Defendants") filed a demurrer. On September 14,

2026, Plaintiff filed an opposition. As of September 22, 2026, no reply has

been filed.

II.

TIMELINESS

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"A person against whom a complaint or

cross-complaint has been filed may, within 30 days after service of the

complaint or cross-complaint, demur to the complaint or cross-complaint." (Code

Civ. Proc., §430.40, subd.

(a).)¿

Per Code of Civil Procedure section¿1005, subdivision (b), moving papers must be filed

at least 16 court days before the set hearing, oppositions must be filed at

least nine court days before the set hearing, and replies must be filed at

least five court days before the set hearing.

Plaintiff served Jaguar with the summons and

complaint by personal service on July 23, 2026. (Proof of Service filed

07/27/26.) Plaintiff served Galpin with the summons and complaint by substituted service on August 7, 2026. (Proof of Service filed 08/31/26.)

The demurrer is untimely as to Jaguar. “A trial court has broad discretion to accept or reject late-filed papers.” (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210, brackets removed.) The court will exercise its discretion and consider the demurrer.

The demurrer and opposition were timely filed under Code of Civil Procedure section 1005, subdivision (b).

III.

MEET

AND CONFER

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Code of Civil Procedure section¿430.41, subdivision (a) requires parties to “meet and confer in person, by telephone, or by video conference” before the filing of a demurrer to attempt to resolve the objections raised in the demurrer.¿The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc., §¿430.41, subd. (a)(3).)

Defendants’ counsel submits a declaration stating they sent Plaintiff’s counsel a meet and confer email, but the parties were unable to resolve the issues. (Roth Declaration ¶ 2.)

Code of Civil Procedure section 430.41, subdivision (a) requires meeting and conferring in person, by telephone, or by video conference. Meeting and conferring by email is insufficient.

“A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).) However, “trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences

between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355, fn. 3.)

The court may not overrule a demurrer based on insufficient meet and confer efforts. As such, the court will consider the merits. In the future, counsels must satisfy their meet and confer obligations, or the court will consider continuing the hearing until the parties have an opportunity to properly meet and confer.

IV.

LEGAL

STANDARD

“A demurrer tests the pleading alone, and not the evidence or the facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Id.) The court also considers “judicially noticed matters.” (Id.) A complaint must contain “[a] statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a)(1).) A “complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)

A party may demur to a complaint because the complaint “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).)

V.

DISCUSSION

Defendants demur to Plaintiff’s fifth cause of action for negligent repair. (Notice of Demurrer p. 3.) Defendants argue the fifth cause of action is barred by the economic loss rule and Plaintiff has not plead the negligence elements with the required specificity. (Notice of Demurrer p. 3.)

Defendants Jaguar and Galpin filed the demurrer. The

fifth cause of action for negligence is against Galpin, not Jaguar. (Complaint p. 12.) The court is aware of no authority permitting a defendant to demur to a cause of action that is not alleged against that defendant. As such, the court considers only whether Plaintiff sufficiently alleges a cause of action against Galpin.

Defendants argue Plaintiff does not allege the negligence elements with the required specificity. (Memorandum pp. 4-5.)

In opposition, Plaintiff argues she sufficiently alleges each of the elements of a negligence cause of action. (Opposition pp. 3-4.)

The elements of a negligence cause of action are:

(1) a legal duty to use due care; (2) a breach of such legal duty; and (3) the breach was the proximate or legal cause of the resulting injury. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.)

Plaintiff alleges she delivered the Vehicle to Galpin for repairs. (Complaint ¶ 84.) Plaintiff alleges Galpin owed Plaintiff a duty, breached that duty, and the breach was a proximate cause of Plaintiff's damages. (Complaint ¶¶ 85-87.) A "complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts." (Doe v. City of Los Angeles, supra, 42 Cal.4th at p. 550.) The allegations here are sufficient to state a negligent repair cause of action.

Defendants also argue the economic loss rule bars the negligent repair cause of action because Plaintiff does not identify the type of damages Plaintiff sustained or damages outside of economic losses. (Memorandum pp. 5-7.)

In opposition, Plaintiff argues the economic loss rule does not bar the negligent repair cause of action. (Opposition pp. 4-5.) Plaintiff cites North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 774 for the proposition that "[i]n service-contract cases, California authority recognizes that when a party undertakes to perform services, the law implies a duty to perform those services with care, skill, reasonable expedience, and faithfulness; negligent performance may constitute both a breach of contract and a tort." (Opposition p. 5.) Plaintiff also argues she may pursue both legal theories and need not choose one theory. (Opposition

p. 5.) Plaintiff argues that the negligent repair cause of action “is distinct from her warranty claims against” Jaguar. (Opposition p. 6.) Finally, Plaintiff argues the economic loss rule does not bar torts for damages a defective product causes to other portions of a larger product. (Opposition p. 6.)

Generally, a plaintiff may not recover in tort for “negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 20, original italics.) “[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred [citations] unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant’s conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (Id. at pp. 20-21.)

In North American Chemical Co. (1997) 59 Cal.App.4th 764, 774, the Court of Appeal stated: “[a] contract to perform services gives rise to a duty of care which requires that such services be performed in a competent and reasonable manner. A negligent failure to do so may be both a breach of contract and a tort. [Citation] In such a hybrid circumstance, the plaintiff is entitled to pursue both legal theories until an occasion for an election of remedies arises.”

Although North American Chemical Co has not been expressly overruled, the court is not persuaded it should apply North American Chemical Co., rather than Rattagan, which states there must be a duty independent of the contract.

Plaintiff allege she took the Vehicle to Galpin to perform repairs. (Complaint ¶ 84.) Plaintiff alleges no property damage or physical harm. Plaintiff also alleges no duty independent of the contract. Accordingly, Plaintiff’s remedy, in the absence of a physical injury or other property damage, is under the contract. Thus, under the economic loss rule, Plaintiff’s negligent repair cause of action is barred.

VI.

LEAVE

TO AMEND

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, ‘leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.’” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)¿

Plaintiff has not yet had an opportunity to amend the complaint. Thus, the court finds there is a reasonable possibility Plaintiff can cure the defect identified above.

IV.

CONCLUSION¿

For the foregoing reasons, the demurrer is sustained. Plaintiff is granted leave to amend the complaint within thirty (30) days of this order.

IT IS SO
ORDERED.

Dated: September 28, 2026

Eric
P. Harmon

Judge,
Los Angeles Superior Court